IN THE NATIONAL COMPANY LAW TRIBUNAL
CHANDIGARH (COURT – II)
(Through Hybrid Mode)

Item No.104

C.P.(CAA) No.10/Chd/Hry/2024
(2nd Motion)

IN THE MATTER OF:

Haldiram Snacks Pvt. Ltd & Ors. ... **Transferor Company**

And

Haldiram Snacks Food Pvt. Ltd. ... **Transferee Company**

Under Section: 230-232, CA, 2013

Order delivered on 27.09.2024

CORAM:
SHRI. UMESH KUMAR SHUKLA, HON'BLE MEMBER (T)
SHRI. HARNAM SINGH THAKUR, HON'BLE MEMBER (J)

PRESENT:

For the Petitioner	:	Mr. Anand Chhibbar, Senior Advocate with Mr. Nahush Jain, Advocate
For the RD/ROC	:	Mr. Vineet Khatri, Company Prosecutor
For the Income Tax Department	:	Mr. Varun Issar, Senior Standing Counsel
For the Official Liquidator	:	Mr. Edward Augustine George, Advocate

ORDER

Report of the Income Tax Department of Petitioner No.2/Demerged Company No.1 has been filed vide diary No.01059/6 dated 26.09.2024. Report of the Income Tax Department of Transferor Company of Petitioner No.2/Demerged Company No.2 has been filed vide diary No.01059/4 dated 22.08.2024. Report of the Regional Director has been filed vide diary

No.01059/5 dated 26.09.2024. Response to the reports of Income Tax Department has been filed vide diary NO.01059/7 dated 26.09.2024. Response to the report of Regional Director has been filed vide diary No.01059/8 dated 26.09.2024. The same are taken on record.

It is stated by the learned counsel for the petitioner Company that he has received letter of no objection from FSSAI. Let the same be placed on record.

It is noted from the report of Income Tax Department of Petitioner No.1/Demerged Company No.1 that its FMCG business accounts for 93% of total turnover and thus there will be significant reduction in its turnover with revenue decreasing approximately 93% post-demerger. In view of the above, learned counsel for the petitioner Companies is directed to place on record the complete audited financial statement of Petitioner Company No.1/Demerged Company No.1 i.e. Haldiram Snacks Pvt. Ltd for the year ended on 31.03.2024 along with its bifurcation into business remaining with the demerged Company and getting transferred to the Resulting Company. The petitioner Companies are also directed to place on record the Post-demerger Net Worth Certificate of both the Demerged Company and Resulting Company. Let the same be done within one week.

Let the matter be listed on 25.10.2024.

Sd/- Sd/-

(UMESH KUMAR SHUKLA)
HON'BLE MEMBER (T)

(HARNAM SINGH THAKUR)
HON'BLE MEMBER (J)

Priyanka
27.09.2024